

Under international law, foreign governments are entitled to invoke sovereign immunity on State-owned or operated aircraft arriving into Australian territory. Whenever the claim of sovereign immunity is invoked, biosecurity officers are not permitted to board sovereign immune aircraft to conduct inspections or other official activities. Biosecurity officers will continue to carry out biosecurity functions under the Biosecurity Act 2015 without boarding the aircraft.

While biosecurity officers are not to board an aircraft that has invoked sovereign immunity, the aircraft, its crew, passengers and goods are still subject to Australian biosecurity control and must still meet Australian biosecurity requirements. The processes for managing them are set out below.

Aircraft operator to comply with all Australian biosecurity requirements

The claim of sovereign immunity does not exempt the aircraft operator from meeting Australian biosecurity requirements. The operator of the aircraft must ensure these requirements are met, including:

- seeking permission to land the aircraft at a landing place that is not a determined first point of entry for aircraft or to unload goods at a place that is not a determined landing place for the type of goods being unloaded.
 - First points of entry for aircraft are listed on the department's website. [See Airport Locations](#).
 - The aircraft operator can apply to land or unload goods at a non-first point of entry. See [Aircraft application form](#).
 - If permission is granted, the aircraft operator must comply with any conditions listed on the permission.
- First points of entry for aircraft are listed on the department's website.
- submitting pre-arrival information, including additional information for non-scheduled flights. More information is available in the [Prior to departing your last overseas port](#) page.
- undertaking disinsection of the aircraft prior to arrival in Australian territory. Where the aircraft has not been disinsected prior to arrival, a biosecurity officer will direct the aircraft to be disinsected immediately, and prior to any crew or passengers disembarking or goods being unloaded from the aircraft. For information on disinsection requirements, procedures and spray rates see [Disinsection](#).

Aircraft remains subject to biosecurity control

Foreign governments are required to provide a detailed itinerary of proposed aircraft movements within Australian territory, and details of when and where the aircraft will be opened.

If a detailed itinerary has not been provided prior to arrival, a biosecurity officer will obtain this information from the commander of the aircraft on arrival. The commander must notify the department of any amendments to the itinerary.

As the department cannot verify that the aircraft is free from items of biosecurity concern, the commander of the aircraft will be advised that the aircraft remains subject to biosecurity control until it leaves Australian territory.

Upon closing of the aircraft doors and holds, a biosecurity officer will direct the commander (either orally or in writing) that the aircraft must remain closed. The aircraft will now be considered by the department to be 'sealed', and it must not be re-opened unless a biosecurity officer is present or the department has authorised the aircraft to be opened. This applies to both cabin doors and holds. The department may implement surveillance on 'sealed' aircraft to prevent the removal of goods of biosecurity concern.

Biosecurity waste

All waste on board the aircraft must be securely stored. If waste is to be removed from the aircraft, it must be placed in double plastic bags and be managed by a third party that has an approved arrangement with the department to handle biosecurity waste. Alternatively, waste may be retained on board the aircraft for export from Australian territory.

Baggage and goods

All passenger and crew baggage and goods must be presented to a biosecurity officer following removal from the aircraft at the first point of entry in Australian territory. The biosecurity officer will determine if an inspection of any or all of the baggage and goods is required.

Some goods must meet specific import requirements, some may need an import permit before they will be permitted into Australia and some goods cannot be brought into Australian territory. The import requirements for goods can be found by searching the [Biosecurity Import Conditions system \(BICON\)](#).

Baggage or goods covered under diplomatic privilege will be processed by the department in accordance with the Vienna Convention for Diplomatic and Consular Relations.

Travel to subsequent airports

If the aircraft is scheduled to land at a subsequent airport(s) prior to departing Australian territory, the aircraft remains subject to biosecurity control. The measures outlined above for passenger and goods apply at all subsequent airports, unless otherwise advised.

If the aircraft is travelling to an airport that does not have appropriate departmental inspection facilities, only goods released from biosecurity control at a first point of entry for those goods may be removed from the aircraft at that airport.

If permission to unload goods at subsequent airport(s) is required, the operator of the aircraft must ensure the department has granted permission before departing the first point of entry.

Further information

Further information relating to Australia's biosecurity requirements visit the [Aircraft, vessels and military](#) web page.

Source: <https://www.agriculture.gov.au/biosecurity-trade/aircraft-vessels-military/aircraft/sovereign-immunity>